

24STCV09981 24STCV09981

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DEMURRER

WITHOUT MOTION TO STRIKE

The Court tenders

the following tentative decision in the matter Courtney Arwin v. Chris

Romano, Los Angeles County Superior Court case number 24STCV09981, set for

hearing on September 10, 2026. Chris Romano (Defendant) demurs

to Courtney Arwin's (Plaintiff) second cause of action for fraud contained in

her first amended complaint (FAC). Defendant's demurrer is sustained. Plaintiff

is granted 20 days' leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a

cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the

legal sufficiency of the factual allegations in a complaint." (Yalung v.

State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal

sufficiency, a court will treat the demurrer as admitting all material facts

properly pleaded, but not contentions, deductions or conclusions of law. (Esparza

v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well

settled that a "demurrer lies only for defects appearing on the face of the

complaint[.]" (Stevens v. Superior Court

(1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting

all material facts properly pleaded, but also give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context." (Quelimane Co. v. Stewart Tit. Guaranty Co.

(1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint

must be construed liberally by drawing reasonable inferences from the facts

pleaded. (*Wilner v. Sunset Life Ins. Co.*
(2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (*Ion Equipment Corporation v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (*Kramer v. Intuit Inc.* (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendant demurs to Plaintiff's second cause of action for fraud on the basis that Plaintiff has not pled sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) To plead fraud, a plaintiff must show: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Specifically, Defendant argues that Plaintiff has not pled sufficient facts demonstrating his intent to defraud. "[S]omething more than nonperformance is required to prove the defendant's intent not to perform his promise." (*Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 30 [quoting *People v. Ashley* (1954) 42 Cal.2d 246, 263.] "To maintain an action for deceit based on a false promise, one must specifically allege and prove, among other things, that the promisor did not intend to perform at the time he or she made the promise and

that it was intended to deceive or induce the promisee to do or not do a particular thing.” (Tarmann v. State Farm Mutual Automobile Ins. Co. (1991) 2 Cal.App.4th 153, 159.) Making a promise with an unrealistic intent to perform does not constitute an actionable false promise. (Ibid.) Additionally, fraud must be pled with specificity. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843–844.) In other words, a plaintiff must plead facts showing “how, when, where, to whom, and by what means” any alleged misrepresentations are made. (Alfaro v. Community Housing Improvement System & Planning Assn. Inc. (2009) 171 Cal.App.4th 1356, 1384 (Alfaro).)

Here, Plaintiff loaned Defendant \$50,000, and additional money subsequently. (FAC ¶¶ 7–8.) She alleges that on July 19, 2022, Defendant represented he would repay the loan in full, and that such a representation was false. (Id. ¶¶ 18, 38–39.) Plaintiff further alleges that Defendant knew the representation was false when made and that he intended for her to rely on the representation. (Id. ¶¶ 41–42.) In doing so, Plaintiff fails to plead Defendant’s intent to defraud with the required specificity. Plaintiff suggests that Defendant promised to repay the loan and intended for Plaintiff to rely on that promise, but Plaintiff does not allege that Defendant had no intention of repaying the loan whatsoever. Fraud and breach of contract are distinct causes of action: one does not become liable for fraud simply by breaching a contract, in effect breaking a promise. A breach of contract may constitute promissory fraud in circumstances where a promise is made without any intention of performing it. (Civ. Code, § 1572.) But Plaintiff does not allege that Defendant lacked any intention of repaying the loan; rather, she maintains that Defendant’s statement that he would repay the loan was false because he did not repay the loan and that he intended her to rely on his statement. She states that Defendant planned to cause her injury, but this does not rise to the level of specificity required under Alfaro when pleading fraud. Thus, Plaintiff has not pled sufficient facts in support of her cause of action for fraud. Accordingly, Defendant’s demurrer is sustained.

Conclusion:

Defendant’s demurrer is sustained. Plaintiff is granted 20 days’ leave to amend.